

**Before the
Federal Maritime Commission**

Docket No. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,

v.

ORIENT OVERSEAS CONTAINER LINE LTD. AND OOCL (EUROPE) LTD.

v.

SAMSUNG ELECTRONICS COMPANY, LTD.

RESPONDENTS' MOTION TO COMPEL

Respondents, Orient Overseas Container Line Limited and OOCL (Europe) Ltd. (“OOCL” or “Respondents”), by and through their undersigned counsel, pursuant to the Federal Maritime Commission’s (“FMC”) Rules of Practice and Procedure 46 C.F.R. § 502.150, hereby move to compel Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”) to provide full and complete answers to the Interrogatories described below and to identify documents supporting those answers (“Motion”).

I. INTRODUCTION

This dispute began on October 7, 2022, when SEA sent a Notice of Demand for Action to OOCL (“Demand”), demanding \$11 million in demurrage, detention and other charges, which it alleged were caused by OOCL’s “unreasonable and unlawful conduct.” (Amended Complaint, ¶52). During the ensuing months, OOCL repeatedly requested a list of the shipments on which SEA’s claim was based, a description of the delays which gave rise to these claims, and an explanation as to why OOCL was

responsible for same. Other than a blanket assertion that OOCL was responsible for all costs for deliveries at an inland location, SEA never provided this information.

On March 24, 2024, SEA filed a Complaint against OOCL (“Complaint”), alleging, *inter alia*, that OOCL had improperly charged SEA substantial, but unspecified, amounts in detention, demurrage “and associated charges” based on the theory that the transportation of SEA’s shipments on a store door basis required OOCL to bear responsibility for any and all charges it had incurred or would in the future incur, regardless of the circumstances which caused the delays giving rise to those charges. Following the filing of a partial motion to dismiss by OOCL, an Order was issued that directed the dismissal of two counts of the Complaint and that further directed SEA to file an amended complaint quantifying the damages it sought. SEA filed an Amended Complaint (“AmComplaint”) on December 2, 2024, alleging \$12.5 million in “unlawful” demurrage, detention and “associated charges;” \$1.3 million in “additional costs;” “lost revenues” of \$500,000; and \$2 million in prejudgment interest. OOCL filed its Answer on December 12, 2024, which denied SEA’s allegations.

Since receipt of SEA’s demand letter on October 7, 2022, OOCL has been asking SEA to provide information which explains what OOCL did, or failed to do, to cause the damages alleged by SEA. To date, SEA has not provided a substantive or meaningful response. This Motion seeks an order compelling SEA to provide that information.

II. BACKGROUND

The facts relating to the two core discovery requests which are the subject of this Motion are described below.

OOCL served its First Set of Interrogatories and Request for Production of Documents upon SEA on July 2, 2025, and SEA served its Answers on August 1, 2025.¹ This Motion concerns SEA’s

¹ Due to their length, OOCL has not attached copies of SEA’s written Responses, or the Supplemental Responses and communications between counsel referenced *infra* as the relevant portions have been accurately quoted herein. Complete copies of these documents will be filed if requested by the ALJ.

Answers to Interrogatory nos. 10 and 11, which relate to Interrogatory no. 9, requesting SEA “(d)escribe the bill of lading numbers, invoice numbers, container numbers and amounts claimed by SEA for each Subject Shipment.” Although SEA has now addressed deficiencies with no. 9, its responses to Interrogatory nos. 10 and 11, set forth below with SEA’s answers, remain deficient:

“10. For each Subject Shipment, describe specifically the cause of all delays relating to the retrieval and return of the containers which resulted in the Charges claimed by SEA.

RESPONSE: SEA objects to this interrogatory on the basis that it is vague and ambiguous, particularly with respect to the word “retrieval” as it does not specify if the retrieval is from the marine terminal or delivery location. If the “retrieval” is from the marine terminal, the Interrogatory does not contemplate that the cause of delays for “retrieval” may be different than the cause of delays for the return of the containers. SEA further objects to this Interrogatory on the basis that such information is in the possession, custody, or control of OOCL as OOCL was responsible for the coordination of the transportation of the relevant SEA shipments and SEA was not; accordingly the causes of the delays at issue are matters within the control and knowledge of OOCL, not SEA. Subject to and without waiving the foregoing objections, SEA responds that it will produce responsive non-privileged documents in its possession, custody, or control documenting whatever information SEA may have in response to this Interrogatory.

11. For each Subject Shipment, describe specifically how OOCL caused or contributed to the underlying transportation delay which resulted in the Charges claimed by SEA.

RESPONSE: SEA objects to this interrogatory on the basis that such information is in the possession, custody, or control of OOCL as OOCL was responsible for the coordination of the transportation of the relevant SEA shipments and SEA was not; accordingly the causes of the delays at issue are matters within the control and knowledge of OOCL, not SEA. Subject to such objections, SEA responds OOCL was responsible to deliver containers to SEA’s designated inland destinations in accordance with the applicable bills of lading issued with store-door terms, that OOCL issued invoices claiming demurrage for delays due to its failure to timely deliver such containers and abdicated its responsibility to do so upon the nomination of customer-nominated truckers (“CNTs”) without legal authority to do so. SEA further responds that it will further answer this Interrogatory by producing responsive non-privileged documents in its possession, custody, or control.”

A. OOCL’s Certification of Conference Pursuant to Rule 502.150(a)(2)(i)

Counsel for OOCL sent a deficiency letter to SEA’s counsel on September 5, 2025, identifying the numerous deficiencies in SEA’s discovery responses, including Interrogatory nos. 10 and 11. Following a conference call among counsel on September 17, 2025, to discuss a resolution of these deficiencies, SEA served Supplemental Responses on October 1, 2025. With respect to Interrogatory no. 10, SEA’s Supplemental Responses stated as follows:

“RESPONSE: SEA objects to this Interrogatory on the basis that such information is in the possession, custody, or control of OOCL. Subject to and without waiving the foregoing objections, SEA responds that the shipments for which demurrage and detention reparations are claimed moved under store door terms, making the arrangement, transportation, delivery, and pickup of the relevant containers the responsibility of OOCL. Thus, the cause of such delays are best known, identified, and mitigated by OOCL, the party responsible for the transportation. Further, to the extent known by SEA, SEA will identify the specific cause of the delay on a container-by-container basis, and provide responsive non-privileged documents in its possession, custody, or control.”

SEA did not supplement its response to Interrogatory no. 11.

As these responses did not provide any facts describing how OOCL caused or contributed to delays giving rise to the charges that it claims, counsel for OOCL contacted SEA on November 19, 2025, requesting the issue be discussed at another “meet & confer”:

“Thank you for the spreadsheet and SEA’s recent production, which we are in the process of reviewing. At this time, we note that the spreadsheet SEA provided does not contain any information which explains the reason for delays or describe any substantive fault on the part of OOCL which supports SEA’s claim for reimbursement of the amounts listed in the spreadsheet. The review we have conducted of SEA’s production also does not provide any substantive information on this issue.

The deficiency letter we sent on September 5, 2025 required that SEA provide substantive responses to interrogatories 10 and 11. In summary, these interrogatories required SEA to identify reasons for delays affecting the shipments on which claims are made, and to describe what OOCL did or did not do to cause those delays. SEA has not substantively responded to these important questions and the documents it has recently provided do not provide those answers.

During our call this afternoon, please be prepared to discuss why SEA has not provided this information, which we have been demanding for the past 2 1/2 months, and to confirm when SEA will provide these substantive responses.”

In response, SEA’s counsel sent the following email:

“Thank you for your note below.

Respectfully, SEA provided substantive responses timely on August 1st, and in response to OOCL’s Revised Interrogatory 10, on October 1st, in response to our prior meet and confer.

In short, it is SEA’s position that OOCL was responsible for delivering the claimed containers to SEA’s inland destinations in accordance with the applicable bills of lading (which indicate store door terms). OOCL’s failure to manage the transportation of the containers, which were within the custody and control of OOCL, was the cause of the delays.

Happy to discuss.”

As these Supplemental Responses did not provide the information sought by OOCL, its counsel was asked at the call held on November 19, 2025, whether SEA would provide the information OOCL requested in Interrogatory Nos. 10 and 11; SEA's counsel responded that no further amendments would be provided.

Accordingly, the undersigned counsel for OOCL certify that they have conferred in good faith with counsel for SEA in an effort to resolve the dispute that is the subject of this Motion.

III. **LEGAL STANDARD**

FMC Rules permit discovery “regarding any nonprivileged matter that is relevant to any party’s claim or defense.” 46 C.F.R. § 502.141(e)(1). FMC Rule 502.150 authorizes the Presiding Officer to compel compliance with discovery requests when a party has provided insufficient or inadequate responses, or hides behind spurious objections. *See* 46 C.F.R. § 502.150 (“For purposes of this section, a failure to make a disclosure, answer, or respond includes an evasive or incomplete disclosure, answer, or response”).

A. SEA’s Answers to Interrogatory Nos. 10 and 11 Are Deficient

While all of SEA’s responses are replete with improper objections and non-responsive answers, the focus of this Motion is SEA’s response to Interrogatory nos. 10 and 11. The amended response to No. 10 and the original response to No. 11 contain the objection that the information sought “is in the possession, custody, or control of OOCL.” This assertion, even if it were accurate, is not a sufficient basis for denying discovery. *See Marine Transport Logistics, Inc. v. CMA CGM*, 2024 WL 474879, at *5 (F.M.C. Jan. 31, 2024) (quoting *Cook v. Rockwell Int’l Corp.*, 161 F.R.D. 103, 105 (D. Colo. 1995)). And, contrary to SEA’s assertion in its answers, the objection is factually baseless because the information OOCL seeks to discover is known only to SEA because, in many instances, the cause of the delay was the responsibility of SEA, including:

- Failure of SEA's warehouses or customers to accept deliveries at all, or in a timely manner;
- SEA's Customer Nominated Truckers ("CNTs")² were unable or unwilling to pick up containers at the marine terminal and make delivery of SEA's shipments;
- SEA's warehouses used OOCL's containers (and the chassis on which they were loaded) as storage; and,
- SEA's warehouses and/or CNTs were unable or unwilling to timely return empty containers to the marine terminals.

These are facts which are only known to SEA, contrary to the incorrect assertion that OOCL should somehow be able to divine information about the performance or nonperformance of entities over which OOCL had no control or with respect to which it has no knowledge. SEA's answers are calculated to evade the provision of substantive information which explains the cause of delays giving rise to its claims and what allegedly OOCL did, or failed to do, to cause those delays.

In response to both interrogatories, SEA states that it "will answer this Interrogatory by producing relevant, non-privileged documents" and/or claims that the information/documents is/are protected by the attorney-client privilege or the work-product doctrine. However, SEA has only referred to its document production in response to these two, focused interrogatories, without specifying where in the production the information could be found. This is improper. In conferring with counsel for SEA, the undersigned raised this issue and counsel's response was that the option to produce business records in response to an interrogatory is in compliance with Fed. R. Civ. P. 33. Yet, as the undersigned pointed out, Commission Rule 205 provides that the response can refer to business records only if: (1) the burden of deriving or ascertaining the answer will be substantially the same for either party; and (2) **specifying the records** that must be reviewed **in sufficient detail to enable the interrogating party to locate and identify them as readily as the responding party could.** 46 C.F.R.

² Customer Nominated Truckers were motor carriers that were designated by SEA to make the final delivery from the marine terminal to SEA's customers or SEA's warehouses/distribution centers. Pursuant to the terms of the Service Contracts, to which SEA was bound, OOCL paid the freight rates of these CNTs as agent for SEA but had no control over these CNTs or responsibility for their non-performance or deficient performance.

§ 502.145(d). Clearly, SEA's reference to its massive document production consisting of 1.1 million pages, without more, is not sufficient. To the contrary, this response is calculated to evade rather than provide responsive information about fundamental evidence which SEA must adduce: what did OOCL do, or fail to do, that exposes it to liability for SEA's claims.

B. SEA Should Provide Responsive Answers to Interrogatory Nos. 10 and 11

From the beginning, OOCL has asked SEA to provide a list of its claims, identify the cause of the delays giving rise to those claims, and describe why the actions of OOCL or OOCL's failure to act, caused those delays and the resultant damages claimed by SEA. SEA refused to provide this information following issuance of its Demand in October, 2022, and, in this proceeding, merely argues that, since the shipments at issue move under store-door terms, SEA does not need to articulate any of these facts. This argument is not tenable because it is based upon SEA's incorrect assumption that the ocean carrier is responsible for all detention and demurrage charges incurred under a store door move. This argument has been previously raised by SEA and rejected:

“SEA's argument that an ocean common carrier is responsible for detention and demurrage on store door moves is not supported by the applicable guidance. Despite that commentators argued that ocean carriers should not be able to charge shippers demurrage and detention on carrier haulage/store door moves, the Demurrage and Detention Final Rule does not contain such a provision. Rather, the Commission expressed that it had concerns about charging shippers demurrage on carrier haulage moves under section 41102(c) and would closely scrutinize them in an appropriate case. 85 Fed. Reg. at 29664-29665. Thus, it is clear that the Commission has not determined that demurrage and detention cannot be charged on store door moves...

SEA's argument that an ocean common carrier is responsible for detention and demurrage on store door moves is also undermined by the fact that it admits that it is appropriate to assess demurrage and detention charges against a consignee in store door moves when it is responsible for the delay, such as when inland transportation is impossible due to the inability of the warehouse to receive cargo or diversion to a new customer due to the fault of SEA. (citation omitted) It is also undermined by the fact that SEA's own document shows that it preferred CNTs over house truckers in part due to their ability to perform pre-pulls in order to avoid demurrage charges. *Samsung Electronics America, Inc. v. SM Line Corporation*, FMC Dkt. No. 23-01, Initial Decision, Dkt. 148, at page 50. (Emphasis supplied).

The two Interrogatories which are the subject of this Motion are similar to those served by the

Respondent on Complainant in *Peloton v. Flexport*, FMC Dkt. No. 24-19:

“Interrogatory No. 12: For each Subject Shipment, state specifically the cause of all alleged delays relating to the retrieval and return of the containers.

Interrogatory No. 13: For each Subject Shipment, state specifically how Flexport caused or contributed to the underlying transportation delay as alleged Paragraph 18 of Your Verified Amended Complaint.” Order on Pending Motions,” Dkt No. 72, at pages 16-17.

In that proceeding, the Complainant raised the same objections, and a similar smoke screen, as those which have been employed by SEA. These actions required the Respondent, Flexport, to move to compel. With respect to both Interrogatories, the Presiding officer held: “The undersigned finds that the request is reasonably calculated to lead to the discovery of admissible evidence. With the exception of claims of privilege, Peloton’s objections are **OVERRULED**. The motion to compel...is **GRANTED**.”³ *Id.* at pages 16-17.

The ruling by the Presiding Officer in *Peloton* was furthermore consistent with rulings by other Presiding Officers ruling on the merits of claims asserted by claimants (including SEA) against other carriers, which held that the burden of proving the very facts about which OOCL seeks discovery in this proceeding, rests firmly with the claimant.

It is undeniable that, to prevail in a proceeding to enforce the Shipping Act, a complainant bears the burden of proving its allegations by a preponderance of the evidence. 5 U.S.C. § 556(d); 46 C.F.R. § 502.203; *Maher Terminals, LLC v. Port Auth. of N.Y. & N.J.*, Dkt. No. 08-03, 2014 WL 9966245, at *14 (FMC Dec. 17, 2014). Under the preponderance standard, a complainant must show that their allegations are more probable than not. *Crocus Investments, LLC v. Marine Transport Logistics, Inc.*, Dkt. No. 15-04, 2021 WL 3732849, at *3-4 (FMC Aug. 18, 2021). When this principle is applied to cases filed by SEA and other Complainants seeking the same types of damages sought in this proceeding, the rulings are consistent that the Complainant must prove, container by container, what acts or omissions on the

³ The Presiding Officer’s Order also directed Peloton to prepare a privilege log detailing the documents and information it was withholding in response to these requests on the grounds of privilege.

part of the carrier caused its alleged damages:

“As previously stated, SEA did not provide a container-by-container analysis that includes the factual basis for which each demurrage and detention charge was assessed... In the absence of a container-by-container analysis specifying the cause of each charge in dispute, a complainant generally fails to meet its burden to establish that the damages sought proximately resulted from the unreasonable practices alleged.” *Samsung v. SM Line, supra*, at page 54. (Emphasis supplied).

“Applying the fact-specific, container-by-container analysis used in *Hapag-Lloyd, A.G.*, I find that Complainant does not carry its burden of showing that the charges at issue are unjust or unreasonable as to almost every claim related to the 245 container shipments over which the Commission has jurisdiction.” *TZ SSE Buyer, LLC v. Yang Ming Marine Transport Corp.*, FMC Dkt. No. 24-10, Initial Decision, Dkt. No. 35, at page 22.

C. SEA’s “Tagging System” Is Not Responsive to the Interrogatories at Issue

On January 9, 2026, weeks after it was promised, SEA served an electronic “overlay” which, when applied to its production, inputs the discovery requests into an “Issue” field to which each document purportedly responds. An image of what this overlay looks like appears below:

Issue Designation

RFP COMMUNICATIONS AND RELATED DOCUMENTATION (ROG 8, ROG 10, ROG 12, ROG 21, ROG 22, ROG 23, ROG 24, ROG 27, ROG 29, ROG 32, RFP 3, RFP 5, RFP 6, RFP 7, RFP 8, RFP 15, RFP 16, RFP 19, RFP 20, RFP 22); ROG 26; SEA ACTIONS DOCUMENTATION (ROG 32, RFP 22); DISPUTE RESOLUTION (ROG 30, RFP 20)

When a search for “ROG 10” is conducted, it responds with 45,681 “hits” – requiring OOCL’s counsel to review each and every document to determine if and how it is responsive to the question of how a delay caused SEA’s alleged damage and, furthermore, attempt to divine which shipment the document is related to. Notably, there do not appear to be any responsive designations identified in the overlay for Interrogatory no. 11. Furthermore, there were numerous documents which were irrelevant and non-responsive, but which were given the responsiveness designations described above. A few examples are:

- 24-17 SEA 00042240, an “OOCL.COM News and Announcements” automated email (of which nearly five hundred exist and appear to be identically tagged) allegedly responds to “COMMUNICATIONS AND RELATED DOCUMENTATION (ROG 8, ROG 10, ROG 12, ROG 21, ROG 22, ROG 23, ROG 24, ROG 27, ROG 29, ROG 32, RFP 3, RFP 5, RFP 6, RFP 7,

RFP 8, RFP 15, RFP 16, RFP 19, RFP 20, RFP 22);ROG 26.”

- 24-17 SEA_00042299, an automated reply from Maria Kristina Fernando advises that she has limited access to email during the Christmas holidays allegedly responds to “COMMUNICATIONS AND RELATED DOCUMENTATION (ROG 8, ROG 10, ROG 12, ROG 21, ROG 22, ROG 23, ROG 24, ROG 27, ROG 29, ROG 32, RFP 3, RFP 5, RFP 6, RFP 7, RFP 8, RFP 15, RFP 16, RFP 19, RFP 20, RFP 22).”
- 24-17 SEA_00000490 and 24-17 SEA_00000491, an automated email with an attached invoice (of which there are over one thousand similar pairs that appear to be tagged in the same manner), allegedly respond to “COMMUNICATIONS AND RELATED DOCUMENTATION (ROG 8, ROG 10, ROG 12, ROG 21, ROG 22, ROG 23, ROG 24, ROG 27, ROG 29, ROG 32, RFP 3, RFP 5, RFP 6, RFP 7, RFP 8, RFP 15, RFP 16, RFP 19, RFP 20, RFP 22);ROG 26;SEA ACTIONS DOCUMENTATION (ROG 32, RFP 22);DISPUTE RESOLUTION (ROG 30, RFP 20).”

Contrary to SEA’s assertion, this tactic has expanded, rather than narrowed, the efforts which OOCL must expend to analyze SEA’s belated productions that consist of over 1.1 million pages.

OOCL accordingly seeks an Order compelling SEA to provide responsive answers to the two key Interrogatories that seek the very evidence that SEA will be required to adduce at the end of this proceeding in order to prove its case. The Motion should be granted.

CONCLUSION

SEA has provided insufficient and evasive responses to the two, core interrogatories discussed above, and its objections do not excuse it from providing responsive answers. Having exhausted its efforts to cooperatively resolve this dispute with SEA, OOCL respectfully requests that the Presiding Officer issue an order overruling SEA’s objections and compelling it to serve amended and complete answers to the interrogatories which are the subject of this Motion. And, to the extent SEA relies upon documents to support those answers, the Order should compel SEA to identify those documents.

Dated: January 20, 2026

Respectfully submitted,

/s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I hereby certify that on this 20th day of January, 2026, a true and correct copy of the foregoing Respondents' Motion to Compel was served by electronic mail on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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